

		conceding that the Third Agreement was considered the operative arbitration agreement. As stated above, Defendant cannot enforce the Third Agreement because it is not a signatory to that agreement. Defendant makes no argument that the Second Agreement is enforceable despite the unenforceability of the Third Agreement. For these reasons, the Court finds Defendant has failed to sustain its burden of demonstrating the existence of an agreement to arbitrate. Accordingly, the motion to compel arbitration is DENIED. <i>Case Management Conference is scheduled for January 29, 2027 at 8:30 a.m. in Department C44.</i> Clerk to give notice.
7	White vs. Ford Motor Company 2025-01459385	Motion for Attorney Fees Plaintiff Russell White’s motion for attorney fees and costs is GRANTED in part and DENIED in part. (Code Civ. Proc., §§ 1032, subd. (b) [prevailing party entitlement to costs generally], 1033.5, subd. (a)(10)(B) [recoverable costs may include attorney fees pursuant to statute]; Civ. Code, § 1794, subd. (d) [prevailing party in Song-Beverly action entitled to reasonable fees/costs].) Defendant’s evidentiary objection no. 23 is SUSTAINED (lacks foundation, authentication). Defendant’s evidentiary objection no. 24 is SUSTAINED (relevance). Defendant’s remaining evidentiary objections are OVERRULED. Plaintiffs is awarded attorney fees in the amount of \$17,284.50, which the court finds were reasonably and necessarily incurred. The court finds that the hourly rates claimed by moving party’s attorneys are reasonable and commensurate with market rates in the Orange County area for comparable work. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095 [reasonable hourly rate “is that prevailing in the community for similar work”]; <i>Syers Properties III, Inc. v. Rankin</i> (2014) 226 Cal.App.4th 691, 700 [“determination of the ‘market rate’ is generally based on the rates prevalent in the community where the court is located”].) However, the paralegal rate claimed appears excessive, and the court awards paralegal fees at \$150.00 per hour instead. The court has also somewhat reduced the time claimed by moving party’s attorneys for time spent on discovery (stayed per Code Civ.

		Proc., §871.26, subd. (e)), for tasks associated with a routine case management conference, and anticipated time in connection with the instant motion, which appear somewhat excessive. (See <i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095 [court’s broad authority to determine reasonable fees]; <i>Serrano v. Unruh</i> (1982) 32 Cal.3d 621, 635, FN 21 [clerical tasks should generally be considered overhead and included in counsel’s hourly rate]; <i>Save Our Uniquely Rural Community Environment v. County of San Bernardino</i> (2015) 235 Cal.App.4th 1179, 1187 [trial court did not abuse discretion in reducing fees billed at partner rates for “researching and calendaring all deadlines”].) Otherwise, after review of moving parties’ billing records (Ex. A to motion), the court finds the remaining billing entries and time claimed to be reasonably and necessarily incurred. The motion is DENIED as to costs. Moving party has already filed a Memorandum of Costs (Ex. B to motion; ROA 49), and no motion to tax was filed. (Cal. Rules of Court, rule 3.1700, subd. (b)(1) [motion to tax costs must be filed within 15 days after service of the cost memorandum].) Moving party provides no evidence of costs incurred other than those included in the Memorandum of Costs. (See <i>Smalley v. Subaru of America, Inc.</i> (2022) 87 Cal.App.5th 450, 457 [“In a claim under the Song-Beverly Act ... for purposes of that statute, expenses encompasses out-of-pocket expenses beyond the costs identified in Code of Civil Procedure section 1033.5;” other internal citations omitted].) Since plaintiff’s costs are already recoverable under the unchallenged Memorandum of Costs, it would be a double recovery to award the same costs in connection with the instant motion. <i>Order to Show Cause re: Dismissal on Settled Case scheduled for January 29, 2027 at 8:30 a.m. in Department C44.</i> The court expects a dismissal of the entire case, forthwith, since the issue of attorney’s fees has now been resolved. (See Declaration of Anthony P. Greco [ROA 57].) Moving party shall give notice.
8	Whitewolf vs. Beachwalk Homeowners Association 2023-01346511	Motion for Determination of Good Faith Settlement Defendant USAA Casualty Insurance Company’s Motion for Determination of Good Faith Settlement is GRANTED. Settling Defendant has adequately demonstrated that the settlement amount is within “the ballpark” of their potential proportionate share of